A **MINDFULNESS FOR LAWYERS** WORKSHOP

Solving Sleep Problems

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Short-Term and Chronic Insomnia

Having trouble sleeping does not necessarily mean anything is wrong.

Short-term insomnia over a few days or weeks is a normal reaction to stressful situations.

What you want to avoid is chronic insomnia.

Short-term insomnia can become chronic as a result of:

- Worry and negative thoughts about sleep
- Stress
- Unhelpful sleep scheduling habits
- Associating your bed and bedroom with wakefulness
- Trying to force or induce sleep
- Rarely, certain medical problems, mental health problems, or medications

Sleep Hygiene

Sleep hygiene consists of small changes to your bedroom and daily routine that set you up for a good night's sleep.

For good sleep hygiene:

Associate your bed and bedroom with sleep, not wakefulness.

- Try to use your bed, and preferably your bedroom as a whole, only for sleep and intimacy.
- Minimize time spent lounging in bed before bedtime and especially in the morning after waking up.

Before bed, avoid backlit screens like those on computers, phones, and TVs.

- These screens emit a lot of blue-wavelength light, which disrupts the sleep cycle and delays sleep.
- If you need to use backlit screens before bed, use software that alters the color balance of your screens to emit less blue-wavelength light:

Computer: Flux

iPhone: Night Shift (built-in)

Android: Night Mode (built-in)

Avoid alcohol, nicotine, and caffeine in the evening.

- A drink with dinner is fine if you limit it to one and have it at least two hours before bedtime.
- Drinking to help you fall asleep is a mistake. It may work, but it results in poor-quality, interrupted sleep.

Exercise at the right time.

- When you exercise, your body temperature rises and then falls below your normal resting temperature. A lower body temperature makes it easier to fall asleep, while an elevated temperature makes it more difficult.
- If you exercise three to six hours before bed, your temperature will be low at bedtime, and sleep will come more easily.
- Avoid exercising within three hours of bedtime. Your temperature will still be elevated, making it harder to fall asleep.

Make your bedroom "QDC": quiet, dark, and cool.

- You might use earplugs and either blackout blinds or a sleep mask (look for high-quality, molded designs that don't touch your closed eyes).
- Cover LED lights on electronics.

Physical Relaxation Exercises

These practices work with the body as a way of calming the mind. They are helpful for relaxing before bed, but you can also use them at any time to soothe stress or anxiety.

Vagus breathing

- Breathe slowly (seven breaths per minute or slower), from the belly rather than the chest.
- This stimulates the vagus nerve, which triggers a relaxation response and calms the fight-or-flight response.

Optional enhancements:

- Lengthen the exhale.
- Add a pause between the inhale and exhale.

Progressive muscle relaxation

- You can practice this while sitting, but it is especially relaxing when done lying down.
- Move through the body part by part, starting at the head or the feet, as you prefer.
- For each muscle group, inhale and tense the muscles, vigorously but not to the point of pain.
- Hold the inhale and the tension for five to ten seconds, then exhale and completely release the muscle tension.
- Rest for 10-20 seconds, observing the sensations of relaxation in the muscles you just worked with, then move on to the next muscle group.

Sample Sequence

- **Feet and calves** (flex feet)
- **Thighs** (squeeze together and clench)
- **Glutes** (clench)
- **Stomach** (clench)
- **Back** (arch)
- **Chest** (clench)
- **Arms and Hands** (flex biceps and make fists)
- **Neck** (touch chin to chest)
- **Mouth and Jaw** (smile widely)
- **Eyes** (squeeze shut)
- **Forehead** (raise eyebrows)

Reassuring Truths about Sleep

One of the worst things for insomnia is worrying about insomnia. Fortunately, most of these worries are inaccurate.

COMMON BELIEF:	THE REALITY:
If you don't get a good night's sleep, you won't be able to function well.	Many people can function well, for extended periods, on just five and a half hours of sleep per night.
COMMON BELIEF:	**THE REALITY:**
Lack of sleep will put you in a bad mood the next day.	Much of the bad mood comes from negative thoughts about the lack of sleep, not from the lack of sleep itself.
COMMON BELIEF:	**THE REALITY:**
"I barely slept at all last night."	People tend to underestimate how much sleep they got in a given night and to overestimate how long they were lying awake.

Calming Worries About Sleep

When habitual worries about sleep assert themselves, challenge them through **cognitive restructuring:**

1

Identify the thought that's causing you worry.

"I'm so tired, I won't be able to function at work today."

2

Challenge the truth of that thought

"Am I sure that's true?"

"What's the evidence for that?"

"Is there any evidence to the contrary?"

3

Replace the original thought with a more helpful and less distorted one.

"Yes, I'm tired, but, based on what I've learned about sleep, there's a good chance I'll be able to function just fine."

4

Consider a cognitive behavioral therapy ("CBT") app like Quirk CBT (iPhone) or What's Up? (Android) to help with this process.

Meditation

Research indicates that mindfulness meditation can combat insomnia and improve sleep quality, among other benefits to mental and physical health.

The Posture

- Sit comfortably in a chair, without slouching.
- Feet under the knees, flat on the floor.
- If knees are higher than hips, consider raising the seat or placing a thick book on it.

The Technique

- Rest attention on the sensations of breath at the nose.
- When you notice attention has wandered, gently return to the breath.
- Breathe normally.

Pointers

- Meditation is not about emptying the mind. Let the whole rich landscape of sounds, sensations, and thoughts continue in the background.
- Your mind will wander, and that's okay. This isn't about stopping the wandering; that's impossible. It's about noticing and gently guiding the mind back.
- When you notice you've wandered, briefly savor that recognition before returning.
- Apply gentle effort. No need to strain.
- There is no failing at this, no doing well or poorly. There's only practicing or not.
- *Optional:* apply a light mental label to a distraction (*e.g.*, "thinking," "itching").

Sticking to a Daily Meditation Practice

Daily practice is the key to unlocking the benefits of meditation.

Daily consistency trumps length of sit. Sitting for even one minute is fantastic.

Sit first thing in the morning. It's the easiest way. If that's not workable, aim for the same time every day.

If resistance arises, mentally shrink the session length until the resistance fades.

"Could I do 15 minutes? No, too much resistance. *What about ten?* Still too long; the thought puts me off. *Okay, five?* Hm, I feel like I could sit for five."

Use a timer (*e.g.*, Insight Timer app).

"Practice now. Don't think you will do more later." -Dipa Ma

Sleep Scheduling

By changing our behavior around when we go to bed and when we get up, we can make it easier to fall and stay asleep.

Common Behavior:

Sleeping in late to catch up on sleep.

- This delays your sleep cycle and will make it harder to sleep going forward.
- Instead, wake up at the same time every day, including weekends, even if you slept poorly the night before.

Common Behavior:

Going to bed early to catch up on sleep.

- This also throws off your sleep cycle and will impede future sleep.
- Instead, set an *earliest allowable bedtime.* Do not go to bed before that time even when very tired.

Common Behavior:

Going to bed based on an external cue like the clock, your partner going to bed, or the end of a TV show.

- External cues don't reflect your natural sleep cycle, so they're not helpful for timing your bedtime.
- Intead, go to bed only after you've started feeling drowsy. Drowsiness signals include yawning, trouble keeping eyes open, nodding head, and thoughts becoming nonsensical.

Common Behavior:

Napping.

- Naps can be healthy — if you take them in the right way.
- To nap well, follow two rules:
  1. Don't nap after 3 PM.
  2. Don't let any single nap last longer than 45 minutes.

Unless you're experiencing chronic insomnia, it's fine to treat these points as loose guidelines rather than strict rules.

Floating Noting

This practice helps you manage anxiety, a major contributor to sleep problems.

It shifts you into "observation mode" rather than an anxious "reaction mode."

1. No specific anchor to focus on; let attention float freely.

2. As attention drifts, various sights, sounds, sensations, and thoughts may grab your attention and stand out.

3. **As this happens:**
   - Notice whatever stands out most in your awareness.
   - Give it a light mental label.

4. **Label using simple categories:**

   Seeing for sights,
   Hearing for sounds,
   Feeling for physical sensations,
   Thinking for anything mental.

Floating Noting: Pointers

You might find this practice helpful to do in bed at night, but you can also use it whenever you feel anxious during the day.

No need to adopt a special posture.

Find a nice, steady rhythm for your noting, *e.g.*, once every couple seconds.

If the same object stays dominant in your awareness for a while, just keep noting it, *e.g.*, "hearing... hearing..."

If more than one object stands out at once, just pick one.

If you don't know what to label, just label the uncertainty, *e.g.*, "don't know."

The Half-Hour Rule

As with anxiety, resisting sleeplessness only exacerbates it. Being less concerned with falling asleep will help you sleep better.

You can't will yourself to become sleepy.

If you're not falling asleep, don't lie there and "keep trying." It will only stress you. After 20-30 minutes, get up.

Go into a different room, do something relaxing for 20-30 minutes, then go back to bed.

If you become sleepy, great. If not, don't worry about it. Just repeat the process, as many times as you need.

Remember: missing sleep is very common and isn't a big deal.

About the Author

Jon Krop, J.D., has taught mindfulness at Harvard, NYU, Penn, Stanford, Yale, the Pentagon, the world's top law firms, Fortune 100 companies, and many other organizations.

After graduating from Harvard Law School, Jon clerked on the U.S. Court of Appeals for the Ninth Circuit and worked as a litigator at firms in Los Angeles and New York City.

Jon has practiced mindfulness since 2006 and studied with teachers from around the world, including psychologists, neuroscientists, and traditional Buddhist masters. In 2014, Jon completed a seven-month silent meditation retreat.

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